

**Court No. - 32**

**Case :-** WRIT - C No. - 22787 of 2018

**Petitioner :-** Kasturi Bai Gopi Babu Cold Storage Pvt. Ltd.

**Respondent :-** Paschimanchal Vidyut Vitran Nigam Ltd. And  
Another

**Counsel for Petitioner :-** Kunal Ravi Singh, Manjari Singh

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Shashi Kant Gupta, J.**

**Hon'ble Rajiv Gupta, J.**

As prayed by the learned counsel for the Respondents No. 1 and 2, one week's time is granted for seeking instructions in the matter.

Put up as fresh on 17.7.2018.

**Order Date :-** 6.7.2018

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**Court No. - 32**

**Case :-** WRIT - C No. - 22787 of 2018

**Petitioner :-** Kasturi Bai Gopi Babu Cold Storage Pvt. Ltd.

**Respondent :-** Paschimanchal Vidyut Vitran Nigam Ltd. And Another

**Counsel for Petitioner :-** Kunal Ravi Singh, Manjari Singh

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Shashi Kant Gupta,J.**

**Hon'ble Rajiv Gupta,J.**

Counter affidavit filed today by the learned counsel for the respondents is taken on record.

Learned counsel for the petitioner prays for and is granted two weeks time for filing rejoinder affidavit.

List the matter on 2nd August, 2018.

**Order Date :-** 17.7.2018

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**Court No. - 32**

**Case :-** WRIT - C No. - 22787 of 2018

**Petitioner :-** Kasturi Bai Gopi Babu Cold Storage Pvt. Ltd.

**Respondent :-** Paschimanchal Vidyut Vitran Nigam Ltd. And Another

**Counsel for Petitioner :-** Kunal Ravi Singh, Manjari Singh

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Shashi Kant Gupta, J.**

**Hon'ble Ajit Kumar, J.**

As prayed by the learned counsel for the petitioner, two weeks' time is granted for filing rejoinder affidavit in the matter.

List thereafter.

**Order Date :-** 2.8.2018

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**Court No. - 32**

**Case :-** WRIT - C No. - 22787 of 2018

**Petitioner :-** Kasturi Bai Gopi Babu Cold Storage Pvt. Ltd.

**Respondent :-** Paschimanchal Vidyut Vitran Nigam Ltd. And Another

**Counsel for Petitioner :-** Kunal Ravi Singh, Manjari Singh

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Shashi Kant Gupta, J.**

**Hon'ble Ajit Kumar, J.**

As prayed, list in the next cause list.

**Order Date :-** 10.9.2018

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**Court No. - 32**

**Case :-** WRIT - C No. - 22787 of 2018

**Petitioner :-** Kasturi Bai Gopi Babu Cold Storage Pvt. Ltd.

**Respondent :-** Paschimanchal Vidyut Vitran Nigam Ltd. And  
Another

**Counsel for Petitioner :-** Kunal Ravi Singh, Manjari Singh

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Shashi Kant Gupta, J.**

**Hon'ble Ajit Kumar, J.**

As prayed, list the matter in the next cause list.

**Order Date :-** 17.9.2018

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**Court No. - 32**

**Case :-** WRIT - C No. - 22787 of 2018

**Petitioner :-** Kasturi Bai Gopi Babu Cold Storage Pvt. Ltd.

**Respondent :-** Paschimanchal Vidyut Vitran Nigam Ltd. And Another

**Counsel for Petitioner :-** Kunal Ravi Singh, Manjari Singh

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Shashi Kant Gupta, J.**  
**Hon'ble Ajit Kumar, J.**

By means of present writ petition, petitioner has sought following reliefs:

*"1. Issue a writ, order or direction in the nature of Certiorari or any other writ thereby quashing the impugned order dated 24.5.2018 passed by the Respondent No. 2 (Annexure 5-6 of the writ petition).*

*2. Issue a writ, order or direction in the nature of Certiorari or any other writ thereby quashing the impugned Demand Notice dated 25.6.2018 passed by the Respondent No. 2 (Annexure -7 of the writ petition)*

*3. Pass a writ in the nature of Mandamus directing the Respondents to pass a Speaking Order in terms of the provisions of the Electricity Supply Code, 2005."*

At the very outset, Sri Chandan Agarwal, learned counsel for the respondent stated that writ petition is not maintainable as the petitioner has alternative remedy to approach the Consumer Grievance Redressal Forum under Section 7.10 of the Electricity Supply Code, 2005 for redressal of his grievances.

Learned counsel for the petitioner has not disputed the aforesaid facts as stated by learned counsel for the respondents.

In view of aforesaid, writ petition is dismissed on the ground of alternative remedy.

**Order Date :-** 24.9.2018  
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